

The principle of Treating Customers Fairly is foremost in your minds and ours when handling claims. We keep abreast of the strict law and industry guidance and developments in order to work with you to resolve problematic and often sensitive cases and to advise on continued improvements to your claims assessment processes. Misunderstandings by the claimant, whether this is the extent of cover or the effect of their medical symptoms on their ability to work, can be the root cause of potentially on-going disputes.

Retained by many of the country's leading life and health insurers and reinsurers, we advise on individual and group policy claims for personal accident, income protection, critical illness, health and life assurance.



At Kennedys, we advise and assist insurers in policy drafting and claims management processes, including data protection and regulatory compliance.

Our team deals with policy claims involving a full spectrum of medical conditions and policy interpretation and contractual issues. Our experience and understanding of the medical issues arising enables us to achieve practical solutions for complex and sensitive disputes. We work with rehabilitation experts to help achieve a return to work in appropriate cases.

Our expertise means that we can quickly identify the issues. Whilst we can take full conduct of a complex dispute – our role is flexible. We can prepare letters on your behalf explaining the reasons for avoidance. We can carry out case reviews and advise prior to an anticipated Ombudsman referral. We can conduct a review of a case and recommend a strategy for resolution, or look at key elements and provide summary advice.

We represent insurers at mediation hearings and less formal settlement meetings, as well as representing your interests throughout Ombudsman referrals and court cases.

We advise on reinsurance disputes as well as the drafting and interpretation of reinsurance treaties.

Our advice includes:

- Arbitration
- Bodily Injury / Accidental Cause issues
- Critical Illness
- Data Protection
- Fraud
- Health Insurance
- Income Protection
- Life Assurance
- Ombudman referrals
- Mediation
- Permanent Total Disablement
- Policy drafting and interpretation
- Reinsurance

We keep abreast of and advise on fraud prevention and detection. Whether the fraudulent conduct is characterised by deliberately inflated claims, claims where there has been no loss at all or in which false evidence has been provided, we thoroughly gather evidence, recognising that the burden of proving fraud is on the insurer. We are members of the Insurance Fraud Investigators Group (IFIG).

## Examples of experience include:

- Patel v Windsor Life. Successfully defended a life assurance claim where there was no cogent evidence to corroborate policyholder's alleged death and a finding of attempted deception against insurers.
- Mulchrone v Swiss Life. Acted for insurers in relation to issues involving the Contracts (Rights of Third Parties) Act 1999.
- Seechurn v ACE Insurance SA-NV. Represented Defendant insurer in Court of Appeal on limitation plus estoppel issues involving personal accident policy claim.
- Dilley v UNUM. Group income protection claim that considered whether an employer entered into the insurance contract as agent for the employee.
- King v UNUM. Acted for insurers in relation to claim in which company director with angina followed medical advice and stopped working. His claim failed because the claimant did not undertake reasonable medical tests relevant to assessing capability to work.
- Bachas v NELPHI. Court considered application of the definition for incapacity to work that the insured person was suited to by reason of training, education or experience. The availability of work was not relevant to the application of the definition.
- Bastick v Yamaichi International Europe & NELPHI. Court considered the meaning of "leaving service" in the context of a group income protection scheme, stating that it extended to termination by any means.
- Hussain v New Taplow Paper Mills. Acted for insurers in leading House of Lords decision on income protection and sickness pay deductions.
- We advise in relation to personal accident policy disputes involving a range of sports, including Formula 1, rugby, football and scuba diving.



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